ARTICLES OF INCORPORATION

OF

PARTNERS OF THE AMERICAS FOUNDATION

To: The Recorder of Deeds
Washington, D.C.

The undersigned, being natural persons of the age of twenty-one years, acting as incorporators of a corporation, hereby adopt the following Articles of Incorporation for such corporation pursuant to the District of Columbia Nonprofit Corporation Act:

FIRST: The name of the corporation is "Partners of the Americas Foundation."

SECOND: The period of duration is perpetual.

THIRD: 3.1 The corporation is organized exclusively for charitable, educational and scientific purposes, as defined in section 501(c)(3) of the Internal Revenue Code of 1954, as amended ("Code") (or the corresponding provision of any future federal tax laws), including the making of distributions to individuals and organizations in furtherance of such purposes and/or to individuals and organizations that qualify as exempt organizations under such section.

3.2 The corporation formed hereby shall have the power to take and hold, by bequest, devise, gift, purchase or lease, either absolutely or in trust, any property whether real, personal or mixed,without limitation as to amount or value; to sell, convey and dispose of any such property and to invest and reinvest the principal and income thereof in property, whether real, personal or mixed, including without limitation, securities (which shall include, but shall not necessarily be limited to, shares of stock, bonds, debentures, notes, mortgages and other obligations or evidences of ownership of every kind and nature, any certificates, receipts or other instruments representing participations or undivided interests therein or with respect thereto, rights to receive, purchase or subscribe for the same, and any other rights or interests therein or in any property or assets) in, of, issued or created by any person, firm, partnership, association, corporation,

joint venture, government or subdivision, agency or instrumentality thereof, or any other legal entity of any kind and nature, domestic or foreign, and to deal with and expend the income from and the realized appreciation on property of the corporation in such manner as in the judgment of the Board of Directors of the corporation will best promote its objects and purposes; provided, however, that under no circumstances shall the corporation expend or commit to expend funds in amounts or for purposes except as set forth in Article Sixth, plus such amounts expended (including principal and income) pursuant to direction or the exercise of powers contained in a trust or other instrument under which property is received or administered; and in general, to exercise any, all and every power which a nonprofit corporation organized under the laws of the District of Columbia, as the same shall be amended from time to time, can be authorized to exercise.

3.3 No part of the assets or net earnings, current or accumulated, of the corporation shall accrue to or inure to the benefit of, or be distributed or paid to, and no compensation or payment shall be paid to, its directors, officers or other private persons, except as a reasonable allowance for actual expenditures or services rendered to or for the corporation. No part of the activities of the corporation shall include the carrying on of propaganda or otherwise attempting to influence legislation, and the corporation shall not participate in, or intervene in (including the publishing or distribution of statements) any political campaign on behalf of any candidate for public office. Notwithstanding any other provision of these articles, the corporation shall not carry on any other activities not permitted to be carried on by a corporation exempt from federal income tax under section 501(c)(3) of the Code (or the corresponding provision of any future federal or other applicable tax laws).

3.4 The purpose of the Corporation shall be to establish and maintain a fund or funds and apply and distribute sums therefrom to promote the purposes and goals of The National Association of the Partners of the Americas, Inc. ("NAPA") and the Partners of the Americas, Inc. so that, through common efforts, interchange and mutual cooperation, the common goal of advancing the social and economic well-being of the peoples of the Americas, through private undertakings based upon considerations of human dignity and mutual responsibility, may be encouraged and otherwise fostered.

3.5 If and so long as the corporation is a private foundation as defined in section 509(a) of the Code (or the corresponding provision of any future federal tax laws):

(1) The corporation shall distribute its income for each taxable year at such time and in such manner as not to become subject to the tax on undistributed income imposed by section 4942 of the Code (or the corresponding provision of any future federal tax laws);

(2) The corporation shall not engage in any act of self-dealing as defined in section 4941(d) of the Code (or the corresponding provision of any future federal tax laws);

(3) The corporation shall not retain any excess business holding as defined in section 4943(c) of the Code (or the corresponding provision of any future federal tax laws);

(4) The corporation shall not make any investments in such manner as to subject it to tax under section 4944 of the Code (or the corresponding provision of any future federal tax laws);

(5) The corporation shall not make any taxable expenditures as defined in section 4945(d) of the Code (or the corresponding provision of any future federal tax laws).

FOURTH: The corporation shall have no members.

FIFTH: The manner in which directors shall be elected is as follows:

The directorships shall be divided into two classes. The Class A directors, who shall constitute at all times at least a majority of the Board of Directors, shall, after the initial staggered terms of their appointments are completed, be elected at a regular annual meeting of the Board of Directors by an affirmative vote of a majority of the directors for terms of four years, so that the terms of Class A directors remain staggered. Any Class A director seeking re-election to the Board of Directors shall abstain in such election. No Class A director shall serve more than two consecutive terms; provided, however, that the Class A directors named herein shall be eligible to serve two additional terms after their initial term. The Class

Amended

B directors shall be the duly elected Chairman and Vice-Chairman of NAPA and the highest ranking elected officer of the Partners of the Americas, Inc. who is not a United States citizen, who shall serve as members of the Board of Directors contemporaneously with their terms of office in NAPA or the Partners of the Americas, Inc., as the case may be, and shall be succeeded as members of the Board of Directors automatically upon the taking of office by their respective successors. The President of NAPA shall serve as an ex officio ("without vote") member of the Board of Directors.

SIXTH: Provisions for the regulation of the internal affairs of the corporation, including provisions as to the distribution of assets upon dissolution or final liquidation, are as follows:

6.1 The corporation shall, to the full extent permitted by the District of Columbia Nonprofit Corporation Act, indemnify all officers and directors whom it may indemnify pursuant thereto.

6.2 Except as otherwise specifically authorized herein, the funds and assets of the corporation shall be expended and disbursed exclusively to (a) NAPA for general operations, management and overhead expenses and, with the specific approval of the Executive Committee of NAPA, for specific projects or programs sponsored or undertaken by NAPA, or (b) to federated members of NAPA, with the specific approval of the Executive Committee of NAPA and the Board of Directors of the Partners of the Americas, Inc.

1. grants
2. costs?

6.3 The expenditure of the corporation's annual earned investment income shall be limited so that (a) until the funds and assets of the Corporation exceed $1.5 million, not more than 20% of the annual earned investment income shall be expended or committed in any year, except by a five-sevenths (70%) majority vote of the Board of Directors; (b) whenever the funds and assets of the corporation exceed $1.5 million, then up to 30% of the annual earned investment income may be expended or committed in any year, and a greater proportion of the corporation's annual earned investment income may be expended or committed upon a five-sevenths (70%) majority vote of the Board of Directors; (c) whenever the funds and assets of the Corporation exceed $2.5 million, then up to 50% of

the annual earned investment income may be expended or committed in any year, and a greater proportion of the corporation's annual earned investment income may be expended or committed upon a five-sevenths (70%) majority vote of the Board of Directors; and (d) whenever the funds and assets of the Corporation exceed $3 million, then the expenditure or commitment of its annual earned investment income shall be in the discretion of the majority of the Board of Directors without other limitation.

6.4 Only by a five-sevenths (70%) majority vote of the Board of Directors and a majority vote of the Executive Committee of NAPA, may the corporation invade the then-existing principal amount of its funds and assets (including the initial contribution, subsequent periodic or other contributions from any source, and unexpended annual investment income retained by the corporation) for any purpose.

6.5 Upon the dissolution of the corporation, the Board of Directors shall, after paying or making provision for the payment of all the liabilities of the corporation, dispose of all of the assets of the corporation exclusively for the purposes of the corporation in such manner, or to such organization or organizations whose purposes and programs are similar to those of NAPA and which are organized and operated exclusively for charitable, educational, or scientific purposes as shall at the time qualify as an exempt organization or organizations under section 501(c)(3) of the Code (or the corresponding provision of any future federal tax laws) as the Board of Directors shall determine; any such assets not disposed of shall be disposed of by the Superior Court of the District of Columbia, exclusively for such purposes or to such organization or organizations, as said Court shall determine, which are organized and operated exclusively for such purposes.

SEVENTH: The address, including street and number, of its initial registered office is 1025 Vermont Avenue, N.W., Washington, D.C. 20005, and the name of its initial registered agent at such address is United States Corporation Company.

EIGHTH: The number of directors constituting the initial Board of Directors is seven and the names and addresses of

persons who are to serve as the initial directors until their successors are elected and qualified are:

	Name	Address	Term Expires
Class A			
1.	Frederick Heldring	Philadelphia National Bank Broad and Chestnut Street F.C. 1-2-49 Philadelphia, Pennsylvania 19101	April 30, 1988
2.	Geraldine Kunstadter	Albert Kunstadter Family Foundation 1035 5th Avenue New York, New York 10028	April 30, 1987
3.	Harry Ruffalo	Arthur Andersen & Co. 33 W. Monroe Street Chicago, Illinois 60603	April 30, 1986
4.	Ted Wilson	City Hall Salt Lake City, Utah 84111	April 30, 1985
Class B			
1.	Gary J. Neeleman	P.O. Box 2076 Salt Lake City, Utah 84110	See Article V
2.	Robert E. Raiche	Raiche & Clark 814 Elm Street Manchester, New Hampshire 03101	See Article V
3.	Baldonedo Arthur Napoleao	Prefeitura Municipal Rua Joaguim Meireles 20 36.205 Baroso, Minas Gerais Brasil	See Article V

NINTH: The name and address of each incorporator is:

Name	Address
Dumond Peck Hill	3500 Newark Street, N.W., Washington, D.C. 20016
Alan J. Berkeley	1900 M Street, N.W., Washington, D.C. 20036
Deborah A. Zider	1612 Q Street, N.W., Washington, D.C. 20009

Executed on the 27th day of April, 1984.

Dumond Peck Hill

Alan J. Berkeley

Deborah A. Zider

ARTICLES OF AMENDMENT

TO THE

ARTICLES OF INCORPORATION

OF

PARTNERS OF THE AMERICAS FOUNDATION

TO: The Superintendent of Corporations

FIRST: The name of the corporation is the Partners of the Americas Foundation

SECOND: The following amendment was adopted by the Corporation in accordance with the District of Columbia Code, Title 29 Corporations, Chapter 5 Nonprofit Corporations, Section 29-537:

(1) Delete Article Fifth.

(2) Add new Article Fifth as follows:

FIFTH: The manner in which directors shall be elected is as follows:

The Foundation Board of Directors shall be divided into Class A and Class B directorships. The initial Class A Directors, selected and appointed by NAPA, shall consist of the four persons named in Article EIGHTH herein, and these four persons, together with the President of NAPA, who shall serve as an ex-officio ("without vote") member of the board, shall constitute the Foundation Director Selection Committee created by NAPA for the purpose of selecting all future Class A Directors of the Partners of the Americas Foundation. Upon the expiration of any Class A Director's term for any reason, including cases of death or inability to fulfill their office prior to the normal expiration of their term, or if a Directorship becomes available as a result of an increase in the size of the Board of Directors, the Foundation Director Selection Committee shall meet and elect by majority vote a new Class A

Director within 90 days thereof. Any Class A Director who is seeking re-election to the Board of Directors shall abstain in any such election. No Class A Director shall serve more than two consecutive terms; provided, however, that the Class A Directors named herein shall be eligible to serve two additional terms after their initial term. Should for any reason the size of the Board of Directors change, any such change must maintain the present proportionality of Class A to Class B directors.

The Class B directors shall be the duly elected Chairman and Vice-Chairman of NAPA and the highest ranking elected officer of the Partners of the Americas, Inc. who is not a United States Citizen, who shall serve as members of the Board of Directors contemporaneously with their terms of office in NAPA or the Partners of the Americas, Inc., as the case may be, and shall be succeeded as members of the Board of Directors automatically upon the taking of office by their respective successors.

THIRD: The above amendment was adopted by a majoriy vote of the Board of Directors on January 24, 1985, there being no members having voting rights in respect thereof.

Date: April 30, 1985.

(Corporate Seal)

Partners of the Americas Foundation

By: _____
Frederick Heldring
Chairperson
(Chief Executive Officer)

Attested by: _____
Ted Wilson
Secretary